The constitution of

Umoja Youth Impact Hub Community Based Organization

September 2025

PREAMBLE

We, the Members of Umoja Youth Impact Hub Community Based Organization.,

AWARE that this Community Based Organization was created to serve the youth of Narok in pursuit of environmental sustainability, community health, and social welfare;

DETERMINED that the values of unity, youth empowerment, environmental stewardship, and community health shall be institutionalized in our Community Based Organization;

CONVINCED that this constitution shall guarantee peaceful and productive collaboration among members;

RECOGNIZING the desire of the members to have a constitution that will govern them effectively;

DO HEREBY, with the consent of the registrar of Community groups, adopt and bind ourselves by this constitution.

Arrangement of Articles

1. Name and Identity
2. Scope of Operation
3. Aims and Objectives
4. Membership
5. Rights of Members
6. Obligations of Members
7. Suspension and Restoration of Membership
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CHAPTER ONE: NAME AND PURPOSE OF THE COMMUNITY BASED ORGANIZATION

1. Name and Identity

a) There shall be a Community Based Organization known as Umoja Youth Impact Hub .

b) The Umoja Youth Impact Hub Community Based Organization shall, for all purposes, be abbreviated as UYIH.

2. Scope of Operation

a) All members of the Community Based Organization shall abide by this constitution.

b)) The headquarters of UYIH shall be located in Narok County.

c) The Community Based Organization shall operate within Narok County.

3. Aims and Objectives

The aims and objectives of UYIH shall be:

a) To deliver essential medical services through organized medical camps

b) To promote mental health awareness and support services

c) To establish and manage environmental projects and business funds

d) To implement tree planting and seedling propagation programs in schools

e) To provide civic education on environmental issues

f) To empower youth through capacity building and skills development

g) To promote advocacy for environmental protection and conservation

h) To transform mindsets through challenging existing environmental and health practices

CHAPTER TWO: MEMBERSHIP

4. Membership

Categories of Membership:

a) Full Members:

- Youth aged 18-35 years residing in Narok County

- Required to pay annual membership fee of Ksh 1,000

- Entitled to full voting rights and participation in all activities

b) Associate Members:

- Partner Community Based Organizations and institutions
- Required to pay annual membership fee of Ksh 5,000
- May attend meetings but have no voting rights

b) Honorary Members:

- Distinguished community members appointed by the Board

- No membership fee required

- Serve in advisory capacity without voting rights

5. Rights of Ordinary Members

1) An ordinary member shall have the right to –

a) Access services and facilities offered by UYIH, provided that such access shall be through appropriate and legal means.

b) Get an electronic copy of this constitution and a printed UYIH brochure upon joining the Community Based Organization.

c) Elect and be elected to the organs of the Community Based Organization subject to this constitution.

d) Access all legitimate information relating to the Community Based Organization including internal regulation, minutes and account inventories following delivery of a twenty-one days calendar notice to the Treasurer.

e) Vote on all matters put before a general meeting of the Community Based Organization.

f) All other rights provided by the by laws of the Community Based Organization.

6. **Obligations of Members**

1) Every member shall recognize UYIH officials as the legitimate representatives of the Community Based Organization and shall abide by the constitutional decisions made by the officials.

2) Every member shall honor his/her financial obligations to UYIH.

3) Every member shall be required to support all the projects carried out by the Community Based Organization.

4) Every member shall respect the property of UYIH and any member who causes damage to such property shall be subject to the disciplinary provisions of this Community Based Organization and this constitution.

7. **Suspension of Membership**

1) The Community Based Organization may suspend a member who –

a) Willfully fails to comply with this constitution

b) Willfully defaults in payments and contribution

c) Convicted of criminal offenses.

d) Act in any way detrimental or prejudicial to the interests of the Community Based Organization.

e) Any other reason approved by the Annual General Meeting or may be contained in the code of ethics of the Community Based Organization.

Restoration of membership

1) Membership of an individual may be restored following their payment of requisite dues [fines and penalties] and approval by the Executive committee.

2) In certain cases, the Executive committee may if it is satisfied to restore its membership after assurance by the member that he/she shall not work against the objectives of the Community Based Organization

8. **Cessation of Membership**

1) An individual shall cease to be a member of the Community Based Organization in case of

– a) Death

b) Incapacitation

c) Voluntary withdrawal.

d) Expulsion from the Community Based Organization

2) A member with no liability or outstanding obligation in respect of other members' funds or loans, may withdraw membership at any given time and shall give a notice of 25 days.

3) A member who wishes to withdraw but has a pending liability in form of a debt owed to the Community Based Organization shall have his/her funds in the Community Based Organization used to settle the debts before any refunds. After deductions, the member shall be entitled to **an 85% refund** of their remaining contributions.

9. Meetings

1) This Community Based Organization shall conduct the following meetings:

a) Ordinary Meetings

b) Annual General Meetings (AGM)

c) Special General Meetings (SGM)

a). The Ordinary Meetings

1) These meetings shall be held as and when determined by members usually monthly to conduct the ordinary agendas of the group;

2) The agendas shall include but not limited to savings, monthly contributions, merry go round, loans and Project development.

There shall be two general meetings namely:

Annual General Meeting and Special General Meeting;

2) The Annual General Meeting shall be held on December 30th every year;

3) Notice in writing of such AGM, accompanied by annual statement of account and the agenda for the meeting shall be sent to all members 14 days before the date of the meeting;

4) The agenda for the Annual General meeting shall be:

a) Confirmation of minutes of previous meeting
b) Consideration of accounts
c) Election of members of the management committee
d) Such matters as the committee and members shall decide and;
e) Any other Business approved by the Chairperson.

5) The management committee may call for special general meeting for any specific purpose. Notice in writing of such a Meeting shall be sent to members 14 days before the date thereof;

6) Special General Meetings may also be requisitioned for a specific purpose by order in writing to the Secretary General of not less than half of members and;

7) Quorum for general meetings shall be two-thirds of bona fide members

10. Powers of Annual General Meeting

1) The annual general meeting shall:
a) Confirm the minutes of previous AGM;
b) Consider statement of accounts, the auditor's report and report of the management committee on the activities of the group;
c) Approve the estimates of income and expenditure for the ensuing Financial Year;
d) Confirm or otherwise consider actions of management committee and give appropriate directions;
e) Consider appeals against expulsion of members and refusal of membership by the Management;
f) Elect, suspend or remove members from the management committee provided that proper notice has been given and;
g) Transact any other business of the group which notice has been given to members as provided in this constitution

11. Procedure at Meetings

1) The Chairperson, in case of his/her absence the vice chairperson shall preside over all meetings;

2) The Chairperson may exercise his/her discretion to limit the number of person(s) to speak at a particular meeting;

3) Resolution shall be decided by simple voting. In case of equal votes, the Chairperson shall have a second or casting vote to break the deadlock.

12. The Management Committee

1. The management of the Community Based Organization shall be vested in a Management Committee consisting of:

- **Chairperson**
- **Secretary**
- **Treasurer**

2. All Management Committee members shall be bona fide members of the Community Based Organization.
3. Any office bearer who ceases to be a member of the community based organization shall automatically cease to be an office bearer.
4. Meetings of the Management Committee shall be held as determined by members, but at least once every two months.
5. The quorum for the Management Committee shall be two-thirds of its members.

2) Any office bearer who ceases to be a member of the Group shall automatically cease to be an office bearer thereof.

a). Meetings of the Office Bearers

1) Ordinarily, the office bearers shall meet twice every month (second and last Sunday of each month) physically and twice (Wednesday and Saturday) every week online. 2) The Chairperson shall convene every meeting in a manner to be determined by this constitution.

3) The quorum for the commencement and holding of a meeting by the office bearers shall be two-thirds of the members who should be present for not less than half the entire time of the meeting.

4) A member who fails to attend two (2) consecutive meetings of the council without prior permission from the chairperson shall lose his/her membership.

5) At a meeting of the office bearers, the following shall preside – a) the Chairperson;

b) in the absence of the chairperson, the vice chairperson;

c) in absence of both the Chairperson and vice Chairperson, any other office bearer appointed by members at the time.

13. The Duties and Responsibilities of The Office Bearers

a) Chairperson

- Preside over all general and committee meetings.
- Provide leadership and ensure the smooth running of the Community Based Organization.
- Represent the Community Based Organization in external forums.
- Give direction to the Committee on implementation of policies and programs approved by members.
- Approve meeting agendas and ensure decisions are implemented.

b) Secretary

- Keep accurate minutes of all meetings.
- Handle all correspondence of the Community Based Organization.
- Issue notices of meetings and circulate agendas.
- Maintain an up-to-date register of members.
- Keep custody of the Community Based Organization's records except financial records.

c) Treasurer

- Responsible for all financial matters of the Community Based Organization.
- Receive and bank all monies belonging to the Community Based Organization.
- Maintain proper books of accounts.
- Prepare financial statements and present them at meetings.
- Ensure the Community Based Organization operates within its approved budget.
- Act as one of the signatories to the bank account.

14. Vacation of Office

1) An Office Bearer shall vacate office when he/she:

a) Ceases to be bona fide member of the Community Based Organization.

b) Resigns in a letter addressed to the Chairperson and vice Chairperson.

c) Is suspended from membership.

2) An Office bearer may be compelled to vacate office if he/she:

a) Is found guilty of violating this constitution or any subsequent documents that shall replace it;

b) Is convicted of a criminal offence by a court of law in the Republic of Kenya or any other nation;

c) Is unable to execute the functions of his/her office by reason of infirmity of mind or body;

d) Is absent without the Chairperson's prior written permission from two consecutive physical meetings in a month;

e) Is found guilty of gross mismanagement of UYIH resources.

3) If an office becomes vacant, the vacancy shall be filled as follows –

a) If the office has a deputy, the deputy shall assume office;

b) If the office has no deputy, The Chairperson and an acting chairperson shall by consensus look for a competent replacement within 45 days of the vacation of office by the member.

15. Electoral Procedures

1. All bona fide members shall be eligible voters and contestants.
2. The elections of office bearers shall be conducted in a manner determined by this constitution and shall be—

   a) Held **every three (3) years**, through secret ballot.

   b) All outgoing office bearers shall leave office immediately after the general elections unless re-elected.

   c) Office bearers may seek **re-election** upon the expiry of their term, subject to approval by members.

   d) All general elections shall be presided over by a returning officer who must be an independent person appointed by the members.

   e) The returning officer shall announce the results of the elections which shall be final.

Financial and Banking Provision

1. The Community Based Organization shall open and maintain a **bank account** for all community group transactions.
2. **Members shall approve all withdrawals** from the bank account before presentation to the **Social Services Office** for authorization.

16. FINANCE AND INVESTMENT

Sources of Community Based Organization Funds

1) The funds of UYIH shall be derived from –

a) Registration and Subscription fees;

b) Members contribution;

c) Donations and grants;

d) Loans from Financial Institutions

e) Any surplus from the Community Based Organization's operations

2) All the Community Based Organization funds shall be kept in the Community Based Organization's bank account(s).

3) All the monies received for the purpose of UYIH shall be spent for the benefit of UYIH according to the recommendation of the members.

4) UYIH shall maintain proper books of accounts that shall be made available for audit.

5) Other regulations governing the management of UYIH funds shall be contained in schedules to be annexed to this constitution.

Signatories to the UYIH Bank Accounts

1) The signatories to the Community Based Organization's bank account will be as follows:

a) Three Office bearers i.e. The Chairperson, The Secretary and The Treasurer;

b) Any of the two can sign in an event of any transaction on the bank account

Refunds

1) Withdrawal, expulsion or termination of membership shall not exonerate a member from existing personal or membership liability.

2) This being a non-profit Community Based Organization, a member who withdraws or otherwise expelled from the Community Based Organization shall not be refunded any amounts.

3) Notwithstanding article 22(2) above, a member shall be refunded any amounts advanced to the CBO either through loans or any other legal means and is due at the time of the member's exit from the Community Based Organization.

4) Such amount shall be paid after deductions of any debts owed by him/her to the Community Based Organization as a borrower or any other sums held by the Community Based Organization held on his/her behalf and subject to article 9(3)

17. By-laws and Policies

1) Subject to this constitution, the Office bearers shall prepare the by-laws and policies governing the functions of UYIH and submit them to the general meetings for discussion.

2) Any office bearer may propose a by-law or policy that shall be submitted to the Executive Committee (made of office bearers) and if approved, tabled at the general meeting for discussion.

3) By-laws and policies approved by the members, shall be binding on all members of UYIH and violators of these by-laws and policies shall be subject to disciplinary measurers provided for in this constitution.

18. Discipline

1) Discipline shall, for the purposes of this constitution, mean compliance with the provisions and spirit of this constitution, the by-laws and policies established the members and any other directive issued by the Chairperson and the secretary.

2) Any member may be expelled from membership if the top leadership recommends so but such recommendation shall be ratified by two thirds of members present at a general meeting.

3) A member who is expelled from the Community Based Organization for whatever reason ceases to be a member.

4) Should a member miss to attend two consecutive physical meetings without prior permission, he/she shall be suspended or stand expelled.

5) Should a member fail to remit his/her contribution as stipulated in this constitution, he/she will be suspended.

19. Amendment to this Constitution

1) Any member can institute a claim for an amendment of this Constitution. Such claim shall be made in an Annual General meeting or in a Special General Meeting.

2) After a claim for an amendment has been deposited, the Office bearers shall deliberate on the claim and approve it.

3) After approval, the office bearers shall call for an SGM or wait for the AGM to allow members discuss the proposed amendment.

4) An amendment shall be done if supported by more than two-thirds of the registered members.

5) After adoption, all amended documents shall be presented to the Social Services Office for filing and acknowledgment.

20. Dissolution

1) The group shall not be dissolved except by a resolution passed a general meeting by a vote of two thirds of members present. The quorum of the meeting shall be as specified in article 19(3). If no quorum is obtained, the proposed dissolution of the Group shall be submitted to a further general meeting which shall be held in a month's time;

2) A one-month notice shall be given to the Social Services Office before dissolution.

3) When the registrar has approved the dissolution of the Group, no further action shall be taken by the committee or office bearers of the group in connection to the aims of the group except to liquidate the groups assets and;

4) Subject to payment of the Group's debts, the balance shall therefore be distributed in such other manner as may be resolved by the meeting at which the resolution for dissolution is passed.

21. Final Authority

The final authority of the Community Based Organization shall reside in the members for whose the powers of the Management Committee and any other committee are to be exercised in the manner and within the limit laid down in this constitution

22. Dispute Resolution

1. Any dispute arising within the Community Based Organization shall first be addressed internally through dialogue and mediation facilitated by the Management Committee.
2. If unresolved, the matter shall be referred to an independent mediator agreed upon by the members.
3. Where internal mechanisms fail, the dispute shall be referred to the Department of Social Services or a court of competent jurisdiction.
4. Members shall at all times seek peaceful resolution of disputes in the spirit of unity and cooperation.

23. Indemnity

1. Every office bearer and member acting in good faith and under the authority of this constitution shall be indemnified by the Community Based Organization against any loss, damage, or liability incurred in lawful execution of their duties.
2. No office bearer shall be personally liable for any act or omission done in the Community Based Organization's name, provided such act or omission was within the limits of this constitution.

SCHEDULE TRANSITIONAL AND CONSEQUENTIAL PROVISIONS

The transitional and consequential provisions set out herein shall take effect on the effective date. Effective date – 4th September 2025

This Constitution shall come into force upon the expiry of a fourteen (14) days from the date of ratification by members.

Oath of Allegiance – on the Effective date, the office bearers shall take and subscribe the oath or affirmation under this constitution

DECLARATION

This document has been formulated and agreed upon by all members of THE UMOJA YOUTH IMPACT HUB COMMUNITY BASED ORGANIZATION. It will subsequently be the authoritative guidance on the running of the Community Based Organization's affairs.

This constitution was adopted on September 4th, 2025